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▼ [Navigate Resources](#)

US State AI Governance Legislation Tracker

This tracker focuses on cross-sectoral AI governance bills that apply to private sector organizations.

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US State AI Governance Legislation Tracker

(https://iapp.org/media/pdf/resource_center/us_state_ai_governance_legislation_tracker.pdf)

Navigate Tracker

- **State AI governance law chart**
- **State AI governance law directory**
- **Additional resources**

As with seemingly every aspect of AI, legislative activity related to potential AI risks and harms has moved with unprecedented speed. Often it can take decades for policymakers to begin responding to new technologies with targeted laws. But after generative AI captured the world's attention, it took only a matter of months for U.S. state legislatures to consider responsive legislation. States are not waiting for federal action, instead adopting a remarkably active stance on regulations responding to concerns around many different types of AI systems and contexts.

Unpacking the themes of these legislative efforts is an ongoing undertaking. To help keep track of this rapidly changing landscape, the IAPP has published this tracker (https://iapp.org/media/pdf/resource_center/us_state_ai_governance_legislation_tracker.pdf), which collates legislative activity and reflects emerging themes across AI governance policymaking at the U.S. state level. This information is compiled into a chart and a directory with information specific to states with enacted laws. The IAPP additionally hosts a US State Privacy topic page (<https://iapp.org/resources/topics/us-state-privacy/>), which regularly updates with the latest state privacy news and resources, and a US State Privacy Legislation Tracker (<https://iapp.org/resources/article/us-state-privacy-legislation-tracker/>), which tracks laws with comprehensive approaches to governing the use of personal information.

Over the past few years, state responses have varied widely, reflecting the multifaceted challenges AI poses across legal domains. Initial legislative efforts focused on state government use of AI, with states creating new safeguards or outright bans on high-risk governmental AI applications. Other states have focused on implementing studies and task forces to assess AI's risks and benefits before rushing to new regulations. The recent surge in generative AI has shifted legislative attention to commercial AI guardrails. These efforts typically fall within consumer protection law and aim to amend state legal codes accordingly. This tracker serves as a resource to monitor these developments.

research@iapp.org (mailto:research@iapp.org).

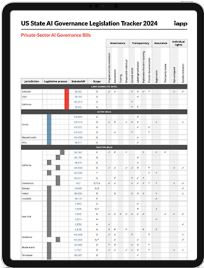
For more information on the IAPP's stance concerning which state AI governance laws are considered to be broadly applicable and affect various types of AI systems, view the text in the below dropdown.

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Scope of state AI governance law tracking

State AI governance law chart

Private-sector AI governance bills



(https://iapp.org/media/pdf/resource_center/us_state_ai_governance_legislation_tracker.pdf)

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This chart is curated to spotlight legislation directly impacting private sector organizations, excluding government-only bills. While such standards influence AI policy, they generally do not impose immediate obligations on private sector organizations. Sectoral AI activities, despite their significance, are also omitted from the chart due to their limited scope.

The chart instead focuses on broadly applicable laws affecting various types of AI systems. This approach acknowledges the complexity of crafting comprehensive AI governance legislation that addresses the spectrum of risks associated with diverse AI applications. The chart features a scope column to indicate the types of AI systems each bill covers, ranging from generative AI to automated decision-making systems. It also categorizes obligations into broad themes, clarifying which provisions apply to developers and deployers. However, the legislative text can vary significantly, so a check mark in the chart does not imply identical obligations across proposals.

Previous versions of this chart are available for 2024

(https://iapp.org/media/pdf/resource_center/us_state_ai_governance_legislation_tracker_2024.pdf)

This section contains information specific to each state with enacted AI governance laws, including links to legislation.

▼		California
▼		Colorado
▼		Utah

Additional resources

▼	Additional US state privacy resources
▼	Additional artificial intelligence resources

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Back to Top

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